

POSITION PAPER



Committee: Barranquilla Summit

Agenda: *Addressing the threats to international peace and security posed by the transnational nexus of drug trafficking and associated illicit activities, with special emphasis on the Golden Triangle and the Americas*

Country: Republic of Indonesia

Committee: Barranquilla Summit

Delegate: Oushnik Raha

PROBLEM:

Indonesia is the largest archipelago with more than 17000 islands and the land of volcanoes with the touch of golden triangle has made it prone to drug supply.

The rising number of drug abuse and illicit drug trafficking in Indonesia is one of the many problems suffered by this nation that requires very serious attention to overcome.

Indonesia's geographic location though strategic but has many drawbacks including the **56,716 kilometres** of coastline and

numerous islands spread across **3 time zones**, Indonesia has vast numbers of remote and difficult to control areas that can be easily used as entry and exit points by traffickers and smugglers.

The global drug trade, particularly within the **Golden Triangle** including Myanmar, Laos and Thailand and across the **Americas**, has become a central threat to international peace and security. This nexus of illicit activity has destabilized the region and undermined global cooperation.

There are many cartels round the world on drug trafficking and Indonesia is getting the

heat of it though not having passive or active involvement with it.

Though geographically distant from the Americas, **Indonesia is directly impacted** by the **spillover of drug flows from the Golden Triangle**, making it a critical player in regional and global anti-narcotics efforts.

Drug trafficking today is no longer a standalone issue—it is deeply interconnected with **organized crime, arms smuggling, corruption, money laundering, terrorism financing, and human trafficking**.

The actual problem with Indonesia lies in the **complexity of balancing strict enforcement** with effective rehabilitation in the face of a growing transnational drug crisis. Moreover, the most important point to be discuss is that the surveillance of such vast coastlines and numerous islands is very difficult. Other countries may have much more land area and widely expanded coastline but do not have separations or natural barriers of water bodies

BALI NINE CASE:

In **April 2005, 9 Australians** were arrested in **Bali** for attempting to **smuggle 8.3kg of heroin** from Indonesia to Australia and were caught at **Ngurah Rai International Airport**.

All Nine were charged under the **Narcotics Law**. Two of them (**Andrew Chan and Myuran Sukumaran**) were executed

Indonesia had made a staunch and beautiful role in the Case:

- Indonesian police, acting on a **tip-off from the Australian Federal Police**

(AFP), arrested the Bali Nine at the **Denpasar Airport** and a hotel.

- On **April 29, 2015**, Indonesia **executed Chan and Sukumaran** along with six other foreign nationals on **Nusakambangan Island**, despite last-minute appeals and global protests.
- Above the all, Australia, the UN, and human rights groups **urged Indonesia to spare the lives** of Chan and Sukumaran but the Indonesian government did not pay any heed to it and stuck to their laws which shows the Indonesian sovereignty

POLICY OF AGENDA:

Indonesia treats drug trafficking as a **national emergency**, enforcing some of the strictest drug laws in Asia, including the **death penalty** for major traffickers under the **Narcotics Law No. 35 of 2009**.

Some **Articles** of the above stated law-

Article 6

(1) Narcotics referred to in Article 5 are classified into:

- **a. Narcotics Category I;**
- **b. Narcotics Category II, and**
- **c. Narcotics Category III.**

(2) Classification of Narcotics as referred to in paragraph (1) for the first time established as set out in Annex I and is an integral part of the this Law.

(3) The provisions for Narcotics classification changes referred to in paragraph (2) shall be regulated by the Minister.

800.000.000,00 (eight hundred million rupiah) and maximum Rp 8.000.000.000,00 (eight billion rupiah).

Laws regarding Storage and Reporting

Article 14

(1) Narcotics that are in control of the pharmaceutical industry, pharmaceutical wholesalers, government pharmaceutical storage facilities, pharmacies, hospitals, community health centre, clinics, doctors, and scientific institutions must be kept in particular.

(2) Pharmaceutical Industry, pharmaceutical wholesalers, government pharmaceutical storage facilities, pharmacies, hospitals, community health centres, clinics, doctors, and scientific institutions shall **create, submit, and store the periodic reports regarding the passage of the Narcotics that are within their control.**

Criminal Provision

Article 111

(1) Any person that without right or against the law planting, maintain, possess, store, control, or provide Narcotics Category I in the form of plants, shall be punished with **minimum imprisonment of 4 (four) years** and a maximum of **12 (twelve) years** and a **minimum fine Rp**

(2) In the case of the act to plant, maintain, possess, store, control, or provide Narcotics Category I in the form of plants referred to in paragraph (1), has a weight more than 1 (one) kilogram or more than 5 (five) trees, the offender shall be punished with imprisonment for life or **minimum imprisonment 5 (five) years and a maximum of 20 (twenty) years** and a maximum fined referred to in paragraph (1) plus 1/3 (one third).

Article 112

(1) Any person that without right or against the law possess, store, control, or provide Narcotics Category I which is not a plant, shall be punished with **minimum imprisonment of 4 (four) years** and a **maximum of 12 (twelve) years** and a **minimum fine Rp 800.000.000,00 (eight hundred million rupiah) and maximum Rp 8.000.000.000,00 (eight billion rupiah).**

(2) In the case of the act to possess, store, control, or provider of Narcotics Category I which is not a plant referred to in paragraph (1), has a weight more than **5 (five) grams**, the offender shall be punished with imprisonment for life or minimum imprisonment 5 (five) years and a

maximum of 20 (twenty) years and a maximum fine referred to in paragraph (1) plus 1/3 (one third).

Article 115

(1) Any person that without right or against the law carrying, transfer, transport, or transit the Narcotics Category I, shall be punished with minimum imprisonment **of 4 (four) years** and a **maximum of 12 (twelve) years** and a minimum fine of **Rp 800.000.000,00 (eight hundred million rupiah)** and **maximum Rp 8.000.000.000,00 (eight billion rupiah)**.

(2) In the case of the act brought, transfer, transport, or transit the Narcotics Category I as referred to in paragraph (1) in the form plant weighing more than **1 (one) kilogram** or more than 5 (five) trees weighing more than **5 (five) gram**, the offender shall be punished with imprisonment for life or minimum imprisonment 5 (five) years and a maximum of 20 (twenty) years and a maximum fine referred to in paragraph (1) plus 1/3 (one third).

Article 103

(1) The judge who examined the case of Narcotics Addicts, may:

- a. decided to ordered the concerned to undergo treatment and/or treatment through rehabilitation, if the Narcotics

Addict are proven guilty of a crime of Narcotics, or

- b. sets out to order the concerned to undergo treatment and/or treatment through rehabilitation, if the Narcotics Addict is not found guilty of a crime of Narcotics.

(2) The period of treatment and/or care for Narcotics addicts as described in paragraph (1) letter a is calculated as the time serving his sentence.

Article 54

Narcotics addicts and victims of abuse of Narcotics shall undergo medical rehabilitation and social rehabilitation.

Article 132

(1) Trial or the conspiracy for the doing a criminal act of Narcotics and Narcotics Precursor referred to in **Article 111, Article 112, Article 113, Article 114, Article 115, Article 116, Article 117, Article 118, Article 119, Article 120, Article 121, Article 122, Article 123, Article 124, Article 125, Article 126, and Article 129**, the offender shall be punished with imprisonment of the same in accordance with the provisions of the Articles.

(2) In the case of acts as referred to in **Article 111, Article 112, Article 113, Article 114, Article 115, Article 116, Article 117, Article 118, Article 119, Article 120, Article 121, Article 122, Article 123, Article 124, Article 125, Article 126, and Article 129** conducted, in an organized, shall be

punished with imprisonment and a maximum fine plus 1/3 (one third).

We can conclude from the above references that-

- Indonesia has **zero drug tolerance policy**
- Indonesia not only has articles of penalties for possession, abuser or trafficking but also **rehabilitation laws (Article 103)** which shows the government's initiative to help the drug abusers to lead a normal life again.
- **Article 104** empowers the **BNN (National Narcotics Board)** to lead drug policy, enforcement, prevention, and rehab programs.
- **Article 111 and 132** outlines **every severe punishments**, including the **death penalty** for large-scale cultivation and trafficking.

Actions By Our Country:

- We have the **National Narcotics Board (BNN)** established by under the **Presidential Decree No. 17 of 2002** and strengthened through **Law No. 35 of 2009 on Narcotics** coordinates prevention, enforcement, and rehabilitation.
- **BNN** has also **raided narcotics production labs and smuggling**

routes and arrested major domestic and foreign traffickers

In **2023**, BNN seized over **1.1 tons of methamphetamine**, some of which was linked to networks of the **Golden Triangle**.

In **2025**, BNN led a coordinated operation (with police, customs, navy, DEA, Thai agencies) seizing **2 tones of crystal meth**, Indonesia's largest ever seizure. The haul was linked to **Golden Triangle syndicates** and valued over \$300 million.

In **April 2025**, Another ship was intercepted carrying **1.2 tones of cocaine + 705 kg meth**, worth ~7 trillion rupiah .

In **2024**, BNN uncovered **14 international drug syndicates**, strengthening its global enforcement activity .

- **Special narcotics courts** handle drug crimes swiftly. Drug kingpins, even foreign nationals, have been tried and executed (e.g., **Bali Nine case**).
- Indonesia is a **hub** of drugs, and maritime security is crucial—over 90% of drugs arrive by sea.

Indonesia believes that **no single nation can face this challenge alone**. The Republic continues to promote **bilateral cooperation** with neighboring states such as **Thailand, Australia, and Malaysia**, and remains deeply engaged in **regional frameworks like ASEAN-NARCO**. Furthermore, Indonesia supports the **United Nations' drug control conventions** and works closely with **UNODC** and **Interpol** on

cross-border enforcement and intelligence sharing.

International Role:

1. Bilateral & Regional Cooperation

Indonesia engages in bilateral cooperation agreements with countries such as:

- **Thailand, Malaysia, and the Philippines** to curb the influence of the Golden Triangle
- **Australia and China** for intelligence sharing and extradition
- **Timor-Leste and Papua New Guinea** to monitor vulnerable border areas

2. UNODC and International Treaties

- **1961 Single Convention on Narcotic Drugs**
- **1971 Convention on Psychotropic Substances**
- **1988 Convention against Illicit Traffic in Narcotic Drugs and Psychotropic Substances**

Indonesia emphasizes a **balanced approach**: strong law enforcement **plus** education, rehabilitation, and international cooperation.

SOLUTIONS :

Indonesia proposes different kinds of **global strategies** to address drug trafficking as a transnational security issue:

1. Dedicated Task Force:

There should be dedicated teams of workers for every country whose primary work would be to keep a well informed chain of people

(intelligence) for getting latest updates about the drug trafficking. We should be keeping the task force ready at its toes. So that as soon as we get any kind of information about any drug entering our country illegally, we shall take the action.

Implementation:

Stating the solution might be easy, but implementing the whole of the body might be a very tiring task as it would take a lot much effort. Some suggestions to make a anti-narcotics task force is provided:

Connections:

There should be a well ordered authority at each country which would be working at different levels. The base level would be the **state centre** i.e. subdivision of a country, then the **national centre** which coordinates with the state centre.

Information Platform:

There should be a platform where all the state agencies could share their information with the national agencies.

2. Enhancing Border Surveillance:

One of the biggest challenges is the poor border monitoring of the countries. If the drug does not enter the country, then how it can cause any internal trafficking. Especially if we can increase the security in the **eastern zone**, then we could atop the cartel of the **Latin America** to travel through the **Pacific Routes**. There should be a significant amount of increase in the border surveillance especially in the drug trafficking prone areas or hotspots such as the **Golden Triangle** or the **Strait of Malacca**.

Implementation:

We could do it by-

- Checking the containers not only by different technologies but also with AI-powered container.
- Thermal sensors can be installed in high trafficking areas.
- Recruitments of Night Patrolling Guards should be increased as most of the cases of drug trafficking is at night.
- **Night Vision Cameras** should be used extensively to stop drug trafficking
- Every container should have **digital code** installed in them and devices that can be used for tracking them and the digital code should give all the details about the container

3. Fear of Laws:

“Crimes are more effectually prevented by the certainty than the severity of punishment.”

-Cesare Beccaria (1738–1794)

The above stated quote by an **Italian jurist** still holds true today. If we make fear in the hearts of the people with the laws, then they will surely stop committing crimes. We are obviously not talking about medieval period death penalties but we can surely modify the death penalties and make them modernized.

Implementations:

Enhancing the efficiency of the jurisdiction and the legal process so that the punishments are given with accordance to the crime committed and not at random.

At medieval times the execution was carried out by hanging, beheading or firing but as a

modern approach we could do it by strict life imprisonments and by making them work tirelessly in the prison.

The above cited laws can **violate** come of the human rights law but if **humans become wild by using the human rights in different way then it what is the human right has no act to play.**

By enhancing border surveillance, strengthening task forces, modernizing legal frameworks, and investing in rehabilitation and education, Indonesia was, will be and is trying its best to stop drug trafficking

This cannot be done by Indonesia alone every country in the world should come up with their innovative ideas to make a world free of drugs.

Citations:

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